

EMPLOYEE TECHNOLOGY ACCEPTABLE/RESPONSIBLE USE

Loudoun County Public Schools (LCPS) provides access to an extensive array of Local Area Network/Wide Area Network (LAN/WAN) and web-based services and applications to staff and has established acceptable and responsible use policies with which all employees should become familiar. LCPS considers the safe and appropriate use of the Internet and networked resources to be essential to the safety and welfare of the school division.

LCPS supports the use and integration of technology to reach division goals. LCPS computer systems and network services are provided for administrative, educational, communication, and research purposes consistent with the Division's educational mission, curriculum, and instructional objectives. Acceptable and responsible use of computer systems and network services include activities that support teaching and learning.

The regulation and expectations for professional behavior and communication apply to all LCPS staff, all LCPS computers, all LCPS-provided electronic devices wherever used, all uses of LCPS servers, and Internet access and networks regardless of how they are accessed. All users accessing school system electronic networked resources, including the Internet, are expected to use these resources for instructional purposes or to conduct business of the school division.

A. Training and Access. Staff are provided with instruction on social and ethical issues of Internet use including copyright, plagiarism, and Internet safety and security. Additionally, staff are provided with instruction on the use of portable communication or privately owned electronic devices in the classroom. These devices include, but are not limited to: laptops, netbooks, tablets, iPads, cell phones, PDAs, e-readers and hand-held gaming devices.

1. Under the terms and conditions stated in this regulation, all authorized staff have access to:

- a. Productivity and instructional applications via the Local Area Network (LAN).
- b. Virtual classroom instruction via distance learning services.
- c. Web-based electronic research and instructional services via the Wide Area Network (WAN).

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- d. Internet access to news, LCPS and public library access to print and multimedia assets, and content-rich activities available from sites across the World Wide Web.
- e. Electronic communication locally, regionally and globally, including but not limited to electronic discussion groups, email, video conferences and white-board communications.
- f. Public domain multimedia files.

2. Every staff member using the LCPS network services, web-based resources and the Internet must sign the Employee Handbook Acknowledgement Form as a requirement for access.

B. Expectations of Privacy.

1. Staff have no right of privacy nor an expectation of privacy for any activities conducted on any division computer system or the network, including but not limited to email or materials sent, received and/or stored on any division system. The LCPS website is not a public forum or a limited public forum for any purposes. Division officials reserve the right to monitor and record all staff activity. Any evidence of violation of this regulation, the Employee Handbook, or School Board policy, will be provided to division administrators and may result in disciplinary action including the loss of privileges to use LCPS technology resources, suspension, or termination.

2. Any evidence of the use of LCPS technology resources in violation of local, state or federal law, may result in disciplinary action and/or criminal prosecution. Electronic communications received or sent by School Board members shall not be viewed or accessed by any LCPS employee, without expressed school board member permission, or as may be necessary to comply with the Virginia Freedom of Information Act (VFOIA) or with a lawfully issued subpoena or court order. School Board members shall be notified when their emails are accessed by LCPS staff, unless circumstances warrant otherwise (i.e., a law enforcement action or investigation which may be compromised by notifying the School Board member). This shall not prevent designated staff from performing routine file, data, and system maintenance.

C. External Links. It is useful for links to be included on the LCPS website to websites outside LCPS' control. The LCPS website is not a public forum or a limited public forum for any purposes. Links to external websites from the LCPS website are established and maintained in accordance with these guidelines and must serve the

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educational mission of the school division. This regulation provides reasonable guidelines which are viewpoint neutral on when and how links to external sources are permitted.

1. Links to external websites may only be requested by teachers, principals, senior staff, superintendent's cabinet, and School Board members. LCPS shall warn all staff when leaving the LCPS website that they do so at their own risk, that LCPS is not responsible for the content of linked sites, that LCPS does not endorse, approve, certify or control external websites, or any content posted on an external website.

2. Using the following acceptance criteria, LCPS principals and building administrators (or their supervisor) will review links associated with their respective school, facility, department or program under their supervision and decide whether it is appropriate and relevant in accordance with this regulation. These guidelines will also govern the links requested by School Board members. All links must serve or be strictly related to the educational mission of the school division and no link will be permitted to an inappropriate website, which includes any website that:

- a. Exhibits hate, bias, discriminatory, lewd, obscene, pornographic, libelous, profane or otherwise defamatory content;
- b. Advocates or promotes the use of alcohol, tobacco, electronic cigarettes, or illegal drugs;
- c. Promotes or makes available adult or sexually oriented entertainment or materials;
- d. Promotes the unlawful possession of weapons, illegal gambling, or encourages the violation of law, School Board policies, or the Employee Handbook;
- e. Advocates for or against a candidate for public office or promotes or opposes a ballot proposition, except the School Board may authorize a link to an external site on school-related ballot issues officially supported by the Loudoun County School Board; and
- f. Contains unauthorized commercial advertisements.

D. LCPS Staff Responsibilities. LCPS staff will:

1. Monitor and evaluate Internet safety instruction for staff and update as needed.

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2. Evaluate annually the division's technology infrastructure and the network, Internet and data security procedures in place.
3. Remain cognizant of the latest developments in Internet vulnerabilities, legal issues and capabilities related to instruction and impact on division goals.
4. Provide professional development for all staff on the social and ethical issues of Internet use including copyright, fair use and plagiarism, and Internet safety and security.
5. Review this regulation every two years.
6. Provide frequent information related to Internet safety and security to parents and the community via available public media sources.
7. Block or filter internet access to pornography or obscenity.
8. Ensure that as appropriate, LCPS websites and applications protect privacy by using encryption methodologies that meet and/or exceed accepted industry standards.
9. Ensure that copyright or other laws are followed and that no freeware, shareware, games or other executable files are placed on the school division network that alter programs or otherwise damage LCPS technology.
10. Maintain the privacy and security of passwords and accounts and shall not share their passwords or network access with anyone.
11. Respect the password protections and not attempt to learn another's password, access another another's account or impersonate another on the network.
12. Agree to not operate any division technology for commercial use, personal gain or product advertisement.
13. Respect the property of others. Staff shall not access, modify or delete any network files, documents, applications or data files belonging to others. Vandalism, defined as a malicious attempt to harm or destroy another's data or network service, will result in cancellation of privileges and disciplinary action.

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14. Use caution in forwarding emails to persons outside of the school system to ensure privacy and to protect personally identifiable information.

15. Staff shall not attach unauthorized equipment, including personal laptops, tablets, and handheld devices, to the district's network without permission from DDI. The exception to this rule is the LCPS "OPEN" wireless network.

16. Utilize proper network and email etiquette. Harassment, discriminatory remarks, hate mail and threats, obscene or vulgar language, and conduct prohibited by the Employee Handbook, School Board policy, or by law are prohibited in email or other electronic communications. Staff shall not use LCPS equipment or technology to send, receive, view or download illegal material.

17. Properly use and care for all hardware and ancillary computer and network equipment available for use at any division site. Vandalism or destruction of any technology or related component will result in cancellation of privileges, disciplinary action and restitution to the school division.

18. Be responsible for all material in his/her network account and agree to maintain the account free from pornographic, undesirable or inappropriate materials, files or emails. Personal software may not be installed on any division hardware. Staff shall adhere to the Copyright Act of 1976. Transmission of any material in violation of federal or state law or regulation is prohibited and will be dealt with according to criminal statutes.

19. Immediately notify DDI or Department of Instruction for assistance if staff gain access to inappropriate or undesirable Internet materials or becomes aware of a network or hardware security problem, or copyright or fair use infringement, or any Internet safety issue.

20. Be cautious when opening suspicious email or other file attachments from unknown sources to prevent virus, malware, and other malicious attacks that could compromise the network.

21. Agree not to attempt to circumvent or subvert LCPS security controls. For example, staff may not attempt to install or use any software, utilities or other means to access Internet sites or content blocked by the LCPS filters.

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22. Participate in continuing education and awareness opportunities related to information security and data protection.

23. Use the EdTech catalog as a resource for approved instructional applications and will use the process defined to request additional technology resources.

24. Adhere to all School Board policies regarding disclosure of student data and information security requirements.

E. Safeguards. LCPS will take precautions to restrict access to undesirable or inappropriate materials using firewalls, encryption schematics and filtering applications and other security measures as well as provide error-free, dependable access to electronic resources via the LAN. Division staff will monitor activity in classrooms, labs and libraries and will pursue appropriate disciplinary actions based on criminal statutes as appropriate for any violations of this regulation.

F. Disclaimer. LCPS makes no warranties of any kind, expressed or implied, for the network services it provides. LCPS is not responsible for any damages that may incur, including loss of data due to delays, non-deliveries, mis-deliveries, equipment failures or service interruptions. LCPS is not responsible for the accuracy, nature or quality of information gathered from the Internet. LCPS is not responsible for personal property used to access division hardware or networks or the Internet or for any financial obligations resulting from Internet access provided by the division.

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Legal Refs.: [18 U.S.C. §§ 2256](#); [47 U.S.C. § 254](#); Code of Virginia, 1950, as amended, §§ [18.2-372](#), [18.2-374.1:1](#), [18.2-390](#), [22.1-70.2](#), and [22.1-78](#)